

FEDERAL MARITIME COMMISSION

TZ SSE BUYER, LLC, *Complainant*

v.

CMA CGM, S.A., *Respondent*.

DOCKET NO. 24-07

Served: February 10, 2025

NOTICE OF FILING OF AMENDED COMPLAINT

Notice is given that an amended complaint has been filed with the Federal Maritime Commission (the “Commission”) by TZ SSE Buyer, LLC (the “Complainant”) against CMA CGM, S.A. (the “Respondent”). Complainant states that the Commission has jurisdiction over this verified complaint pursuant to 46 U.S.C. 41301 through 41309 and personal jurisdiction over Respondent as an ocean common carrier, as defined by 46 U.S.C. 40102(18), that entered into a service contract, as defined by 46 U.S.C. 40102(21), with a non-vessel operating common carrier who assisted in the delivery of containers for the original complainants.

Complainant is a Delaware limited liability company with a principal place of business in Toledo, Ohio. Impact Products, LLC and Safety Zone, LLC (the “original complainants”) filed the verified complaint in this proceeding on February 7, 2024, and subsequently filed for Chapter 11 bankruptcy and sold the claims asserted in this proceeding to Complainant. The original complainants were shippers pursuant to 46 U.S.C. 40102(23) with offices in Ohio, Tennessee, and Connecticut, among other locations.

Complainant identifies Respondent as a company existing under the laws of France with its principal place of business in Marseilles, France, and as a global ocean carrier who acts in the

United States through its agent, CMA CGM (America) LLC, a New Jersey limited liability company with an office in Norfolk, VA.

Complainant alleges that Respondent violated 46 U.S.C. 41102(c) and 46 U.S.C. 41104(a)(10) and 46 CFR 545.5. Complainant alleges these violations arose from assessment of demurrage, detention, per diem, and yard storage charges during periods of time in which the charges were not just or reasonable because of circumstances outside the control of the original complainants and their agents and service providers, and from the acts or omissions of the Respondent that led to the assessment of these charges.

An answer to the amended complaint must be filed with the Commission as provided in Chief Administrative Law Judge Erin M. Wirth's February 6, 2025, Order on Pending Motions and Second Revised Scheduling Order. The full text of the amended complaint can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/24-07/>.

Pursuant to the Commission's February 7, 2025, Notice of Extension of Time, the initial decision of the presiding judge shall be issued by August 14, 2025, and the final decision of the Commission shall be issued by March 2, 2026.

David Eng
Secretary